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CHAPTER 24

INSTITUTIONAL PROVISIONS

Article 24.1

Trade Committee

1. The Parties hereby establish a Trade Committee comprising representatives of the European Union and Indonesia.
2. The Trade Committee shall meet no later than one year after the entry into force of the Agreement. Thereafter, the Trade Committee shall meet on an annual basis, unless otherwise agreed by the co-chairs of the Trade Committee.
3. The meetings of the Trade Committee shall take place in the European Union or Indonesia alternately, unless otherwise agreed. The Trade Committee may meet in person or by other appropriate means of communication, as agreed by the co-chairs of the Trade Committee.
4. The Trade Committee shall be co-chaired by a representative of Indonesia at Ministerial level and the Member of the European Commission responsible for Trade, or their respective designees.

Article 24.2

Functions of the Trade Committee

1. In order to ensure that this Agreement operates properly and effectively, the Trade Committee shall:
 - (a) consider ways to further enhance trade and investment relations between the Parties;
 - (b) supervise and facilitate the implementation and application of this Agreement, and promote its general aims;
 - (c) supervise, guide and coordinate the work of all specialised committees and other bodies established under this Agreement, and recommend to these bodies any necessary action;
 - (d) without prejudice to Chapter 22 (Dispute Settlement) seek appropriate ways and

methods of preventing problems that may arise in areas covered by this Agreement, or of resolving disputes that may arise regarding the interpretation or application of this Agreement;

- (e) consider any other matter of interest relating to an area covered by this Agreement;
- and
- (f) adopt at its first meeting its own rules of procedure.

2. In order to ensure that this Agreement operates properly and effectively, the Trade Committee may:

- (a) decide to establish or dissolve specialised committees or other bodies other than those established under Article 24.4 (Specialised Committees), and determine their composition, remit and tasks.
- (b) allocate or delegate responsibilities to specialised committees or other bodies under this Agreement;
- (c) recommend to the Parties any amendments to this Agreement;
- (d) adopt decisions to amend this Agreement in accordance with Article 24.3 (Decisions and recommendations of the Trade Committee), in the following cases:
 - (i) Article 2.2 of Chapter 2 (National Treatment and Market Access for Goods) , and Annexes [XXX (Elimination of Customs Duties)]
 - (ii) and [XXX (Tariff Elimination Schedules)]] thereto;
 - (iii) Chapter 3 (Rules of Origin and Origin Procedures) and Annexes[XXX (Concerning the Definition of the Concept of "Originating Products" and Methods of Administrative Cooperation;
 - (iv) Annexes A, B, C, D, and E of Chapter 7 (Technical Barriers to Trade)]
 - (v) to adopt arrangements on the arrangements on the recognition of professional qualifications pursuant to Article [X (Mutual recognition of professional qualifications)] of Chapter 8 (Investment Liberalisaiton and Trade in Services); (vi) Annex 11 (Market Access Schedules of the European Union and Indonesia) to Chapter 11 (Government Procurement)];
 - (vii) Annexes 12-A, 12-B and 12-C to Chapter 12 (Intellectual Property)];
 - (viii) the Rules of Procedure referred to in Chapter 22 (Dispute Settlement /Rules of Procedure);
 - (ix) the Code of Conduct for panellists and mediators referred to in Chapter 22 (Dispute Settlement);
 - (x) the Code of Conduct for panellists and mediators referred to in Chapter [XX (Investment)] ; and
 - [(xi) any other provision or Annex for which the possibility of such decision is explicitly foreseen.
- (e) adopt, through decisions, binding interpretations of the provisions of this Agreement, in accordance with Article 24.3 (Decisions and recommendations of

the Trade Committee). Such interpretations shall enter into force upon exchange of notification in accordance with the Parties' respective procedures. They shall be binding on the Parties and all bodies established under this Agreement, including the panels referred to under Chapter 22 (Dispute Settlement);

- (f) adopt any decisions as envisaged in this Agreement or make recommendations as provided for in Article 24.3 (Decisions and recommendations of the Trade Committee);and
 - (g) communicate on matters related to this Agreement with all interested parties including business, trade unions and civil society organizations.
3. The Trade Committee shall exchange views on topics concerning the implementation of this Agreement with civil society representatives participating in a Civil Society Forum. The Trade Committee shall agree at its first meeting on the operational guidelines for the conduct of such dialogue forum. The Civil Society Forum shall meet in conjunction with the meeting of the Trade Committee, unless otherwise agreed by the Parties. The Parties shall facilitate the organisation of the Civil Society Forum and may also facilitate participation by virtual means. The Civil Society Forum includes members of the Domestic Advisory Groups referred to in Article 24.7 (Domestic Advisory Groups) and is open to other relevant independent civil society organisations established in the territories of the Parties. Each Party shall promote a balanced representation of interest groups in economics, social and environmental matters with fields of activity and expertise directly relating to the scope of this Agreement, as appropriate. The Parties may, jointly or individually, publish any formal statements made at the Civil Society Forum.
4. The Trade Committee shall regularly report to the Joint Committee established under the Framework Agreement on Comprehensive Partnership and Cooperation between the European Community and its Member States, on the one part, and the Republic of Indonesia, on the other part on its activities and those of its specialised committees, as relevant, at the regular meetings of the Joint Committee. Such information could be provided also by designated representatives or in writing.

Article 24.3

Decisions and recommendations of the Trade Committee

1. The Trade Committee shall, for the purpose of attaining the objectives of this Agreement, have the power to take decisions as provided for in this Agreement. The decisions taken shall be binding upon the Parties and enter into force after the notification in writing of the completion of their respective applicable legal requirements and procedures. The Parties shall take all measures necessary to implement the decisions taken by the Trade Committee.
2. For the purposes of attaining the objectives of this Agreement, the Trade Committee may make appropriate recommendations in respect of all matters covered by this Agreement.
3. The Trade Committee shall take its decisions and make its recommendations by consensus.

Article 24.4

Specialised committees

1. The following specialised committees are hereby established under the auspices of the Trade Committee:
 - (a) the Committee on Trade in Goods, on Customs matters, and on Sanitary and Phytosanitary matters;
 - (b) the Committee on Services, Investment, Digital Trade, Government Procurement, Intellectual Property; and
 - (c) the Committee on Trade and Sustainable Growth.
 2. Each of the specialised committees referred to in paragraph 1 shall be convened in specific configurations to carry out its tasks, as follows:
 - (a) the Committee on Trade in Goods, Customs matters, and Sanitary and Phytosanitary matters shall meet in specific configurations with regard to:
 - (i) Chapters [XX (National Treatment and Market Access for Trade in Goods, Trade Remedies and Technical Barriers to Trade)];
 - (ii) Chapters [XX (Sanitary and PhytoSanitary Measures)]; or
 - (iii) Chapters [XX (Rules of Origin and Origin Procedures, Customs and Trade Facilitation, and Intellectual Property for issues related to border enforcement)];
 - (b) the Committee on Services, Investment, Digital Trade, Government Procurement, Intellectual Property shall meet in specific configurations with regard to:
 - (i) Chapters [XX (Services and Investment, Digital trade, Government Procurement and Intellectual Property)]; and
 - (c) the Committee on Trade and Sustainable Growth shall meet in specific configurations with regard to:
 - (i) Chapter 15 (Trade and Sustainable Growth and Development) and Protocol on Palm Oil;
 - (ii) Chapter 17 (Economic Cooperation and Capacity Building); or
- Chapter 16 (Sustainable Food Systems)..

3. The composition of the specialised committees, including their specific configurations, as well as their remit, tasks and functioning shall be as defined in the relevant Chapters and Protocols of this Agreement or by the Trade Committee pursuant to point (a) of Article 24.2(2) (Functions of the Trade Committee).
4. Unless otherwise provided by this Agreement or if agreed by the Parties, the specialised committees shall meet in each specific configuration once a year, or without undue delay at the request of the Trade Committee or of the co-chair of the Trade Committee of either Party. They shall be co-chaired, at an appropriate level, by representatives of the European Union and Indonesia. Each Party shall appoint a co-chair for each specific configuration of each specialised committee, according to its domestic procedures. The meetings shall take place in the Union or in Indonesia alternatively or by any other appropriate means of communication, as agreed by the co-chairs of each specific configuration of the specialised committees. The specialised committees shall, in each specific configuration, agree on their meeting schedule and set their agenda. Each specialised committee may decide its own rules of procedures, in the absence of which the rules of procedure of the Trade Committee shall apply *mutatis mutandis*.
5. The specialised committees may make, in each specific configuration, recommendations or submit proposals for decisions to be adopted by the Trade Committee.
6. The specialised committees shall inform the Trade Committee, in each specific configuration, of their schedule and agenda sufficiently in advance of their meetings and shall report to the Trade Committee on the results and conclusions from each of their meetings. The creation or existence of a specialised committee shall not prevent a Party from bringing any matter relating to an area covered by this Agreement directly to the Trade Committee.
6. Each Party shall ensure that when a specialised committee meets in any of its specific configurations, all the competent authorities for each issue on the agenda are represented, as each Party deems appropriate and in accordance with the specific configuration in which the committee is meeting, and that each issue can be discussed at the adequate level of expertise.

Article 24.5

Working Groups

1. The following Working Groups are hereby established:
 - (a) the Working Group on Motor Vehicles and Equipment and Parts thereof, under the supervision of the Committee on Trade in Goods, on Customs matters, and on Sanitary and Phytosanitary in its specific configuration with regard to Chapters 2 (National Treatment and Market Access for Goods), 5 (Trade remedies), and 7 (Technical Barriers to Trade)];

[.....]

2. Working Groups shall, under the supervision of the specialised committees in a specific configuration, assist the specialised committees in the performance of their tasks and, in particular, prepare the work of the specialised committees and carry out any task assigned to them by the latter.
3. Working Groups shall comprise representatives of the Union and of Indonesia and shall be co-chaired by a representative of the Union and a representative of Indonesia.
4. Working Groups shall set their own rules of procedure, meeting schedule and agenda by mutual consent.

Article 24.6

Contact points

1. Each Party shall designate an “CEPA contact point” to facilitate communications between the Parties on matters pertaining to this Agreement and shall notify it to the other Party within 30 days following the entry into force of this Agreement.
2. The designated CEPA contact points shall:
 - (a) unless otherwise provided for in this Agreement, or otherwise agreed by the co-chairs of the Trade Committee, deliver and receive all notifications and information to be provided between the Parties pursuant to this Agreement;
 - (b) facilitate communications between the Parties on any matter covered by this Agreement, as well as on its implementation;
 - (c) coordinate preparations for the meetings of the Trade Committee and the specialised committees;
 - (d) respond to any enquiries received pursuant to [...]; and
 - (e) maintain an updated list of Chapter specific contact points that follow matters related to the implementation of the relevant Chapters of this Agreement.

Article 24.7

Domestic Advisory Groups

1. Each Party shall create a new or designate an existing domestic advisory group within a year from the entry into force of this Agreement, with the task of providing advice, including on its own initiative, on matters concerning the implementation of the Agreement. The composition of each domestic advisory group shall ensure a balanced representation of

independent civil society organisations¹, based on a multi-stakeholder approach which includes relevant interest groups in economics, social and environmental matters.

2. Each Party shall convene a meeting with its domestic advisory group at least once a year and consider the advice or recommendations that the group may provide. Each Party may decide on the follow-up to the advice or recommendations by its domestic advisory group. Domestic advisory groups may be convened in different configurations to discuss the implementation of different Chapters and provisions of this Agreement.
3. The Parties shall promote public awareness of their respective domestic advisory groups and encourage interaction between them. To this end, each Party shall make publicly available relevant information on the composition of its advisory group and shall exchange information with the other Party on its own domestic advisory group contact point(s).

¹ Civil society includes non-governmental organisations, business and employers' organisations as well as trade unions.